DAVID VOEGELE
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DVOEGELE@OLDHAMCOUNTYKY.GOV

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KNUSS@OLDHAMCOUNTYKY.GOV

RYAN FISCHER
DIRECTOR
RFISCHER@OLDHAMCOUNTYKY.GOV

OLDHAM COUNTY
PLANNING & DEVELOPMENT SERVICES
100 WEST JEFFERSON STREET, SUITE 3, LAGRANGE, KENTUCKY 40031
OFFICE 502-222-1476 • FAX 502-222-3213
WWW.OLDHAMCOUNTYKY.GOV

Staff Packet

Zoning Map Amendment
Wescott Commercial Development

The following documents are the Staff Packet for the Zoning Map Amendment for 2706 S. Hwy. 393. This includes:

1. Ordinance
2. Letter to Judge Voegele
3. County Attorney Review Form
4. Staff Report
5. Application
6. Plan
7. Planning Commission Minutes
8. TRC Minutes
9. Community Meeting Minutes

COMMONWEALTH OF KENTUCKY
OLDHAM COUNTY
ORDINANCE NO. KOC 26-920-43

AN ORDINANCE RELATING TO A CHANGE IN THE OLDHAM COUNTY ZONING MAP REZONING A 3.98 ACRE TRACT OF LAND LOCATED AT 2706 S. HWY 393, BUCKNER, KENTUCKY FROM THE EXISTING I-2 HEAVY INDSUSTRIAL DISTRICT TO C-2, COMMUNITY BUSINESS DISTRICT ZONING CLASSIFICATION.

* * * * *

WHEREAS, the Oldham County Planning & Zoning Commission on application of Wescott Development desires to change the Oldham County zoning map in reference to a 3.98 acre tract located at 2706 S. Hwy 393, Buckner, Kentucky, and seeks a zoning map change for the 3.98 acres from the existing I-2 Heavy Industrial District to C-2 Commercial Business District zoning classification; and,

WHEREAS, the Oldham County Planning & Zoning Commission did advertise and conduct a public hearing on the issue of rezoning the hereinafter described 3.98 acres on September 22, 2026 (Docket PZ-26-023), and at the conclusion of said hearing, did find that the map amendment is in agreement with the Comprehensive Plan and recommended to the Oldham County Fiscal Court that said zoning classification on the hereinafter described 3.98 acres be changed as requested; and,

WHEREAS, the Oldham Fiscal Court did advertise and conduct a public hearing on the recommended zoning map change, and Fiscal Court having made the necessary findings and conclusions justifying said zoning map change and said Fiscal Court having voted to adopt the zoning map change at its regular meeting

conducted November 17, 2026.

NOW, THEREFORE, BE IT ORDAINED BY THE FISCAL COURT OF OLDHAM COUNTY, COMMONWEALTH OF KENTUCKY, THAT:

The Oldham County zoning map controlling the zoning classification of the hereinafter described 3.98 acres be changed from the existing I-2 Heavy Industrial District to C-2 Community Business District classification located at 2706 S. Hwy. 393, Buckner, Kentucky. This zoning map change is accompanied by and contingent upon any and all binding elements to be recorded as restrictions on the land and its usage with the Oldham County Court Clerk at La Grange, Kentucky. **Beginning** at point in the West line of Highway 393, said point being the Northeast comer Tract 1 as shown on Minor Plat recorded in Deed Book 1438 Page 305, in the Office of the Clerk of the County Court of Oldham County; Thence with the West line of Highway 393 the following: South 06 deg. 51 min. 43 sec. East 91.19 feet, South 10 deg. 35 min. 15 sec. East 83.76 feet, South 23 deg. 05 min. 07 Sec. East 103.61 feet, South 37 deg. 12 min. 26 Sec. East 2.54 feet, South 37 deg. 08 min. 37 Sec. East 80.56 feet, South 20 deg. 15 min. 06 Sec. East 38.49 feet, and South 16 deg. 14 min. 42 Sec. West 47.84 feet; Thence leaving the line of Highway 393 South 69 deg. 06 min. 20 Sec. West 174.29 feet to a point; Thence South 69 deg. 06 min. 21 Sec. West 125.88 feet to a point; Thence North 20 deg. 08 min. 57 Sec. West 463.33 feet to a point; Thence North 73 deg. 36 min. 32 Sec. East 125.01 feet to a point; Thence North 22 deg. 23 min. 29 Sec. West 104.82 feet to a point; Thence North 75 deg. 19 min. 33 Sec. East 210.15 feet to a point in the aforementioned West line of Highway 393; Thence with said line South 22 deg. 17 min. 28 Sec. East 104.66 feet to the Point of Beginning, containing 3.73 Acres more or less.

Dated this _____ day of _____, 2026.

_____

DAVID VOEGELE
Oldham County Judge/Executive

ATTEST:

_____
Oldham County Fiscal Court Clerk

DAVID VOEGELE
JUDGE-EXECUTIVE
DVOEGELE@OLDHAMCOUNTYKY.GOV

KEVIN NUSS
DEPUTY JUDGE-EXECUTIVE
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OFFICE 502-222-1476 • FAX 502-222-3213
WWW.OLDHAMCOUNTYKY.GOV

Date: October 19, 2026

TO: David Voegele, Judge-Executive
100 W Jefferson Street
LaGrange, KY 40031

RE: Ordinance No. KOC-26-920-43
Wescott Commercial Development (PZ-26-023)
2706 S. Hwy. 393
Zoning Map Amendment

Dear Judge Voegele,

In an effort to make sure items are heard by the legislative bodies in a timely manner, we are sending you notice of this approved docket item.

On September 22, 2026, the Oldham County Planning and Zoning Commission heard at a public hearing, a request for a Zoning Map Amendment on the above referenced docket. The motion to approve the Zoning Map Amendment carried. The minutes will be approved at the Planning Commission meeting on October 27, 2026, and will be sent following approval.

Please tentatively place this item on the docket for the first reading on ***November 3, 2026*** and for the second reading/public hearing on ***November 17, 2026***. The legal description of the proposed zoning map amendment is enclosed.

Thank you for your assistance and please advise as to other information needed.

Sincerely,

John W. Hine

John W. Hine
Senior Planner
Oldham County Planning and Development

Cc: Oldham County Fiscal Court Clerk

David Voegele
Judge Executive
dvoegele@oldhamcountyky.gov

Kevin Nuss
Deputy Judge Executive
knuss@oldhamcountyky.gov

FISCAL COURT AGENDA ITEM REQUEST
&
COUNTY ATTORNEY REVIEW FORM

10/16/2026
Today's Date

KOC 26-920-43 Wescott Commercial Development Zoning Map Amendment
Name of Document and/or Agenda Item

John Hine, Planning & Development 502-222-1476/ jhine@oldhamcountyky.gov
Submitted by (Name – Department - Committee) (phone / email)

Does this require Fiscal Court's approval? X yes ____ no

11/3/2026 (1st reading), 11/17/2026 (2nd reading)
Fiscal Court Presentation Date

Who will be presenting Item to Fiscal Court? John Hine
(Ex: Committee, Chairperson, Department, Staff, Name)

What action (motion) are you requesting of the court?
Zoning Map Amendment

***** REVIEWED AND APPROVED AS TO FORM & LEGALITY BY COUNTY ATTORNEY *****

D Berry Baxter — 10/28/26

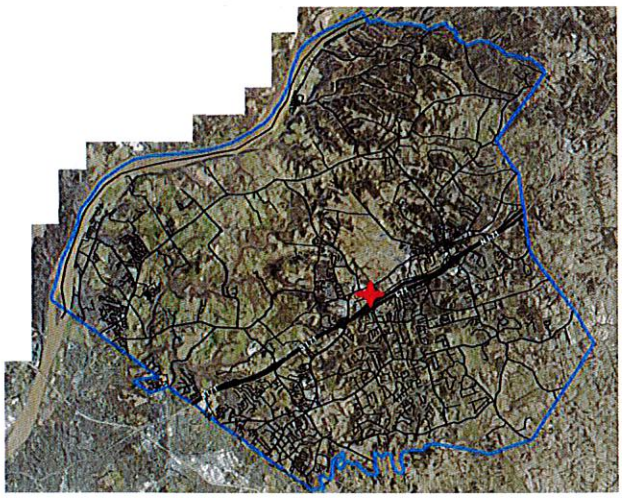
(Signature) Date

D. Berry Baxter, Oldham County Attorney

OLDHAM COUNTY
Fiscal Court
November 17, 2026

Summary of Application:

Docket:	**KOC-26-920-43**
Request:	**Zoning Map Amendment**
Applicant:	Wescott Development
Location:	2706 S Hwy. 393
Existing Land Use:	Undeveloped/ Single Family
Existing Zoning:	I-2, Heavy Industrial
Proposed Zoning	C-2, Community Business District
Total Site Size:	3.98-acres
Tax Parcel:	31-00-00-8F, 31-00-00-8J, 31-00-00-8A



Surrounding Zoning:

North – Land Use: Residential
Zoning: I-2

West – Land Use: Industrial
Zoning: I-2

South – Land Use: Industrial/ Commercial
Zoning: I-2, IPD

East – Land Use: Industrial
Zoning: I-2, IPD

Fiscal Court Action:

Ord. KOC-26-920-43 – An application has been filed by Wescott Development for a Zoning Map Amendment and Development Plan on property located at 2706 S Hwy. 393, La Grange. The property is 3.98-acres and zoned I-2, Heavy Industrial District, with a proposed zoning of C-2, Community Business District.

Site History:

In May 2025, Technical Review Committee reviewed a Category 2 Development Plan for two 200,000 square foot warehouse buildings in Buckner Industrial Park. The plan was subsequently approved at staff level as it did not meet the trip generation requirement necessary for Planning Commission review.

Case History:
Pre-Application Meeting: 7/2/2026
Neighborhood Meeting: 7/16/2026
Technical Review Committee: 8/19/2026
Planning Commission Recommended Approval: 9/22/2026
Fiscal Court 1st Reading: 11/3/2026
Adjoining Property Owner Notices Mailed: 10/26/2026
Public Notice Appeared in Oldham Era: 10/29/2026
Sign Posted on Property: 10/27/2026

Conformance with Comprehensive Plan:
The Oldham County Future Land Use Map (2025) predicts that the use of the tract will be Commercial.

Conformance with Zoning Ordinance:
The proposed plan appears to meet all standards in the Oldham County Zoning Ordinance and Subdivision Regulations.

Agency Comments:
See Planning Commission Minutes in the staff packet.
See TRC comments in the staff packet.
See Community Meeting Minutes in the staff packet.

Notes:
1. The applicant is seeking a Zoning Map Amendment from I-2, Heavy Industrial District, to C-2, Community Business District, to create multiple commercially zoned lots.
2. According to Oldham County Comprehensive Zoning Ordinance Section 170-010, the purpose of the C-2, Community Business District is to provide for retail shopping and personal service uses, shopping goods and household services for a population considerably larger than that served by local business districts.
3. The plan proposes reconfiguring the existing lots to create five (5) lots with three (3) quick service restaurants.
4. The existing single-family residence at 2706 S Hwy. 393 is to be removed.
5. Two of the commercial lots will take access from both Old 393 and the proposed private road while the third commercial lot will take access from the proposed private road only.

Motions and Findings:
Every motion to approve a Zoning Map Amendment must state the finding(s) required by statute or regulation and must also state the reasons for the motion. Every motion to deny must state the reasons for the motion. These are procedural due process requirements for all cases before the Commission.
Suggested motions to approve or deny are set out below.

1. **Zoning Map Amendment**

Motion to recommend **approval** of the zoning map amendment because (any or all of the following):
a. It complies with objectives _____ of the comprehensive plan because _____; and/or
b. The existing zoning classification given to the property is inappropriate and the proposed zoning is appropriate because _____; and/or

c. There have been major changes of an economic, physical or social nature within the area involved which were not anticipated in the adopted Comprehensive Plan and which have substantially altered the basic character of such area. The major changes are_____and the basic character has changed from_____ to_____.

Motion to recommend **denial** of the zoning map amendment because (any or all of the following):

a. It does not comply with the comprehensive plan because _____; and/or
b. The existing zoning classification given to the property is appropriate and the proposed zoning is inappropriate because _____; and/or
c. There have *not* been major changes of an economic, physical or social nature within the area involved which were not anticipated in the adopted Comprehensive Plan and which have substantially altered the basic character of such area in that _____.

Proposed Binding Elements- Included with Planning Commission Approval**:**

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

2. **Preliminary Development Plan- APPROVED BY PLANNING COMMISSION 9/22/2026**

Motion to **approve** the preliminary plan because:

a. It complies with objectives _____ of the comprehensive plan, the zoning ordinance and the subdivision regulations.
b. _____ (any additional reasons).

The approval is contingent upon the strict adherence to the binding elements/conditions of approval listed above.

Motion to **deny** the preliminary plan because:

a. It does not comply with objectives _____ of the comprehensive plan because _____.
b. The plan does not comply with the Regulations because_____; (such as too many unreasonable or unnecessary waivers are being requested).
c. _____ (any additional reasons).

Proposed Binding Elements:

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. The applicant must obtain all necessary permits and inspections from the relevant agencies.
5. A Landscape and Lighting Plan will be required at time of construction plan approval.
6. A consolidation plat will be required before construction plan approval

DIVISION 200 I-2 HEAVY INDUSTRIAL DISTRICT

Sec. 200-010 I-2 Heavy Industrial District: Intent

The purpose of the I-2 Heavy Industrial District is to provide for industrial uses not allowed in any other district providing such uses are not obnoxious by reason of excessive emission of odor, dust, smoke, noise, gas fumes, cinders, vibrations, refuse matter or water carried waste and that such characteristics are normally not discernible beyond its property.

Sec. 200-020 I-2 Heavy Industrial District: Development Regulations

Minimum Lot Area:

10,000 square feet with sanitary sewers

43,560 square feet without sanitary sewers

43,560 square feet within the city of Pewee Valley

Minimum Lot Width:

150 feet

Maximum Density/Intensity:

1.5 Floor Area Ratio

Maximum Structure Height:

50 feet (agriculture structures are exempt)

An additional 5 feet (or fraction thereof) is allowed for every 5 feet of additional front, side and rear yard setback increase

Minimum Front Yard Setback:

100 feet for structures

35 feet for parking areas

Minimum Side Yard Setback:

35 feet; or

75 feet required when abutting a residential district

Minimum Street Side Yard Setback:

100 feet for structures

35 feet for parking areas

Minimum Rear Yard Setback:

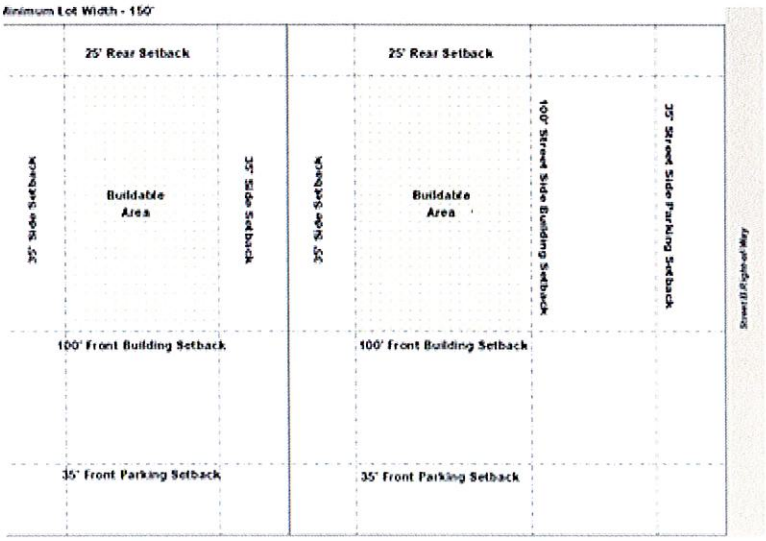
25 feet

Maximum Lot Coverage for Structures:

75 percent of the lot area

Maximum Impervious Surface Including Structures:

90 percent of the lot area



Additional Standards that may Apply:

Accessory Dwelling Units....Sec 250-040
Accessory Uses & Struc.....Sec 250-030
Agritourism Buildings.....Sec 260-035
Barrel Warehouses.....Sec 250-320
Brew pubs.....Sec 250-310
Distillery & Brewery.....Sec 250-300
Height.....Sec 330-010
Home Occupation.....Sec 260-230
Fences & Walls.....Sec 250-090
Capacity of Infrastructure....Division 270
Highway 53 Overlay Dist. Division245
Historic Preservation.....Division 240
Landscaping.....Division 300
Lighting.....Division 310
Parking.....Division 280

Sec. 200-030 I-2 Heavy Industrial District: Permitted Uses

Agricultural Uses

- Agricultural Uses
- Riding Academies and Stables

Commercial

- Adult Entertainment Establishments
- Commercial Schools, Colleges and Art Studios
- Funeral Homes and Mortuaries
- Household Services
- Retail and Personal Service Establishments
- Vehicular Repair of Any Kind Veterinary Hospitals and Kennels

Community Facilities

- Schools, Parks, Playgrounds, Community Centers, and Similar Uses

Eating Establishments

- Eating Establishments of Any Kind

Heavy Industrial

- Canneries and Agricultural Processing
- Ice Manufacturing and Cold Storage Manufacturing or Assembly of Products Which Require the Use of Heavy Machinery
- Storage Elevators

Light Industrial

- Aircraft Factory or Hangar, not including Wind Tunnel and Testing Field
- Blacksmith Shop or Horse Shoeing Establishment
- Boat Building, Boat and Marine Supplies
- Bottlers, Breweries, Distilleries, and Wineries
- Box Factory
- Lumber Storage, Millwork, and Sales
- Mini-Warehouses/Self Storage Facilities

Public Parks and Recreation

- Boat Docks and Launching Areas
- Recreational Camps, Resorts
- Public Parks and Forest Preserves
- Public Picnic Grounds, Beaches, Bridle and Bicycle Paths

Religious Institutions

- Churches and Other Religious Institutions

Utilities

- Public Utility Buildings and Facilities

Sec. 200-040 I-2 Heavy Industrial District: Conditional Uses

Community Facilities and Services

- Hospital, Only with Emergency Facilities Incident to an Industry
- Marinas or Boat Rental

Health Services

- Hospitals and Institutions

Heavy Industrial

- Asphalt Processing
- Concentrated Animal Feed Operations
- Concrete, Central Mixing and Batching Plant Fertilizer
- Incineration or Reduction Products
- Freight Terminals/Similar Enterprises
- Slaughter Houses
- Recreational Vehicle Parks and Campgrounds

Recreation

- Amusement Parks, Circus and Carnival
- Grounds
- Aviaries and Zoos
- Commercial Outdoor Recreation, Uses such as Lodges, Drive-in Theatres, Rental Cottages
- Swimming Pools, Tennis
- Courts and Similar Enterprises
- Commercial Rifle, Pistol and Skeet Ranges, Indoor and Outdoor
- Private Clubs, Country Clubs
- Driving Ranges
- Sports Arenas

Special

- Airports, Heliports, and Other Airship or Flying Machine Take-off or Landing Facilities
- Borrow Pits, Quarry, Gravel Pit, or Stone Mill Cemeteries, Mausoleums and Crematories
- Commercial Lake
- Extraction and Development of Natural Resources

Utilities

- Private Utility Buildings and Facilities

DIVISION 160 C-2 COMMUNITY BUSINESS DISTRICT

Sec. 160-010 C-2 Community Business District: Intent

The purpose of the C-2 Community Business District is to provide for retail shopping and personal service uses, shopping goods and household services for a population considerably larger than that served by local business districts.

Sec. 160-020 C-2 Community Business District: Development Regulations

Minimum Lot Area:

6,000 square feet with sanitary sewers

43,560 square feet without sanitary sewers

43,560 square feet within the city of Pewee Valley

Minimum Lot Width:

50 feet; or

150 feet without sanitary sewers

Maximum Density/Intensity:

1.0 Floor Area Ratio

Maximum Structure Height:

45 feet (agriculture structures are exempt)

Minimum Front Yard Setback:

None

Minimum Side Yard Setback:

None except when abutting a residential district (shall take on that of the abutting district)

Minimum Street Side Yard Setback:

None except when abutting a residential district (shall take on that of the abutting district)

Minimum Rear Yard Setback:

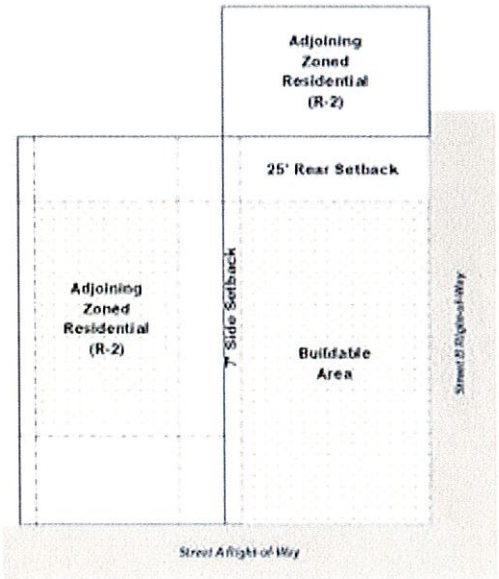
None except when abutting a residential district (shall take on that of the abutting district)

Maximum Lot Coverage for Structures:

40 percent of the lot area

Maximum Impervious Surface Including Structures:

65 percent of the lot area



Additional Standards that may Apply:

Accessory Dwelling Units....Sec 250-040
Accessory Uses & Struc.....Sec 250-030
Agritourism Buildings.....Sec 260-035
Barrel Warehouses.....Sec 250-320
Brew pubs.....Sec 250-310
Distillery & Brewery.....Sec 250-300
Height.....Sec 330-010
Home Occupation.....Sec 260-230
Fences & Walls.....Sec 250-090
Capacity of Infrastructure...Division 270
Highway 53 Overlay Dist. Division245
Historic Preservation.....Division 240
Landscaping.....Division 300
Lighting.....Division 310
Parking.....Division 280
Signs.....Division 290

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Sec. 160-030 C-2 Community Business District: Permitted Uses

Agricultural Uses

- Agricultural Uses
- Farmers Market
- Riding Academies and Stables

Commercial

- Adult Entertainment Establishments
- Firework Sales (Permanent, Ancillary and Seasonal)
- Funeral Homes and Mortuaries
- Hotels and Motels
- Nursing Homes
- Retail and Personal Establishments with a gross floor area < 50,000 square feet
- Vehicle Repair including service stations
- Vehicle Washes
- Vocational Schools

Community Facilities

- Adult Day Centers
- Colleges and Schools, not for profit (CF)
- Nursery Schools, Day Nurseries, and Child Care Centers
- Parks, Playgrounds, Community Centers, and Similar Uses

Eating Establishments

- Restaurants with drive-thru facilities

Indoor Recreation

- Movie Theatres

Office

- Business and Professional Offices including Clinics and Immediate Care Facilities

Public Parks and Recreation

- Boat Docks and Launching Areas, Recreational Camps, Resorts
- Public Parks and Forest Preserves
- Public Picnic Grounds, Bridle and Bicycle Paths

Religious Institutions

- Churches and other Religious Institutions

Special

- Lakes (man-made) non-commercial

Utilities

- Public Utility Buildings and Facilities

Sec. 160-040 C-2 Community Business District: Conditional Uses

Commercial

- Veterinary Hospitals and Kennels

Community Facilities and Services

- Marinas or Boat Renal

Health Services

- Hospitals and Institutions

Natural Resource

- Borrow Pits, Quarry, Gravel Pit, or Stone Mill
- Extraction and Development of Natural Resources

Recreation

- Aviaries and Zoos
- Indoor Sports Facilities
- Private Clubs, Country Clubs, Golf Courses except Miniature cources or Commercial Driving Ranges

Residential

- Community Residences

Special

- Airports, Heliports and other Airship or Flying Machine Take-off or Landing Facilities
- Cemeteries, Mausoleums and Crematories
- Commercial Lakes

Utilities

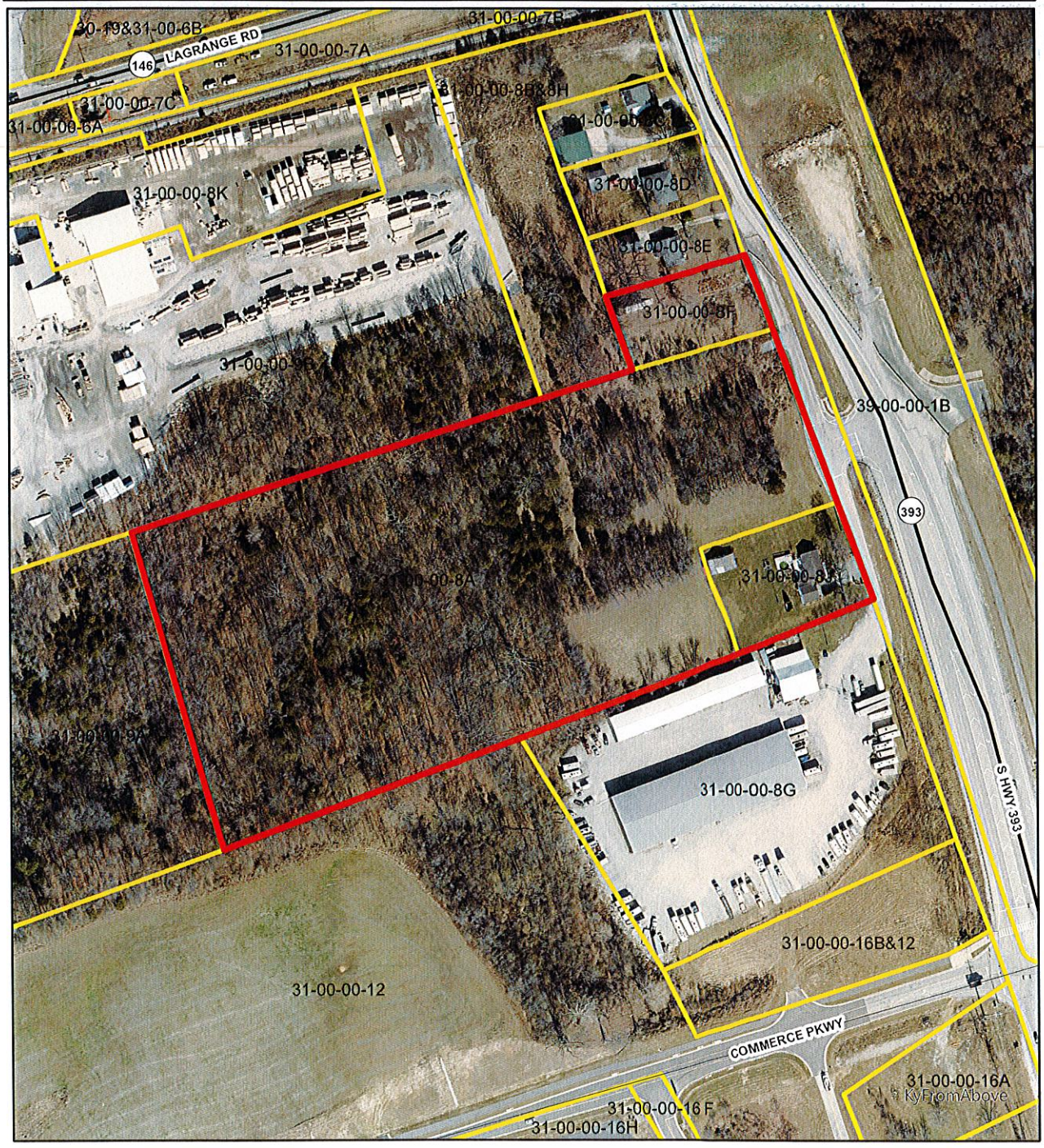
- Private Utility Buildings and Facilities
- Sewage Treatment Plants

WESCOTT COMMERICAL DEVELOPMENT

Zoning Map Amendment/ Development Plan

I-2 to C-2

2706 S HWY 393
31-00-00-8J,31-00-00-8F,
31-00-00-8A



N
W E
S

0 120 240 480 Feet

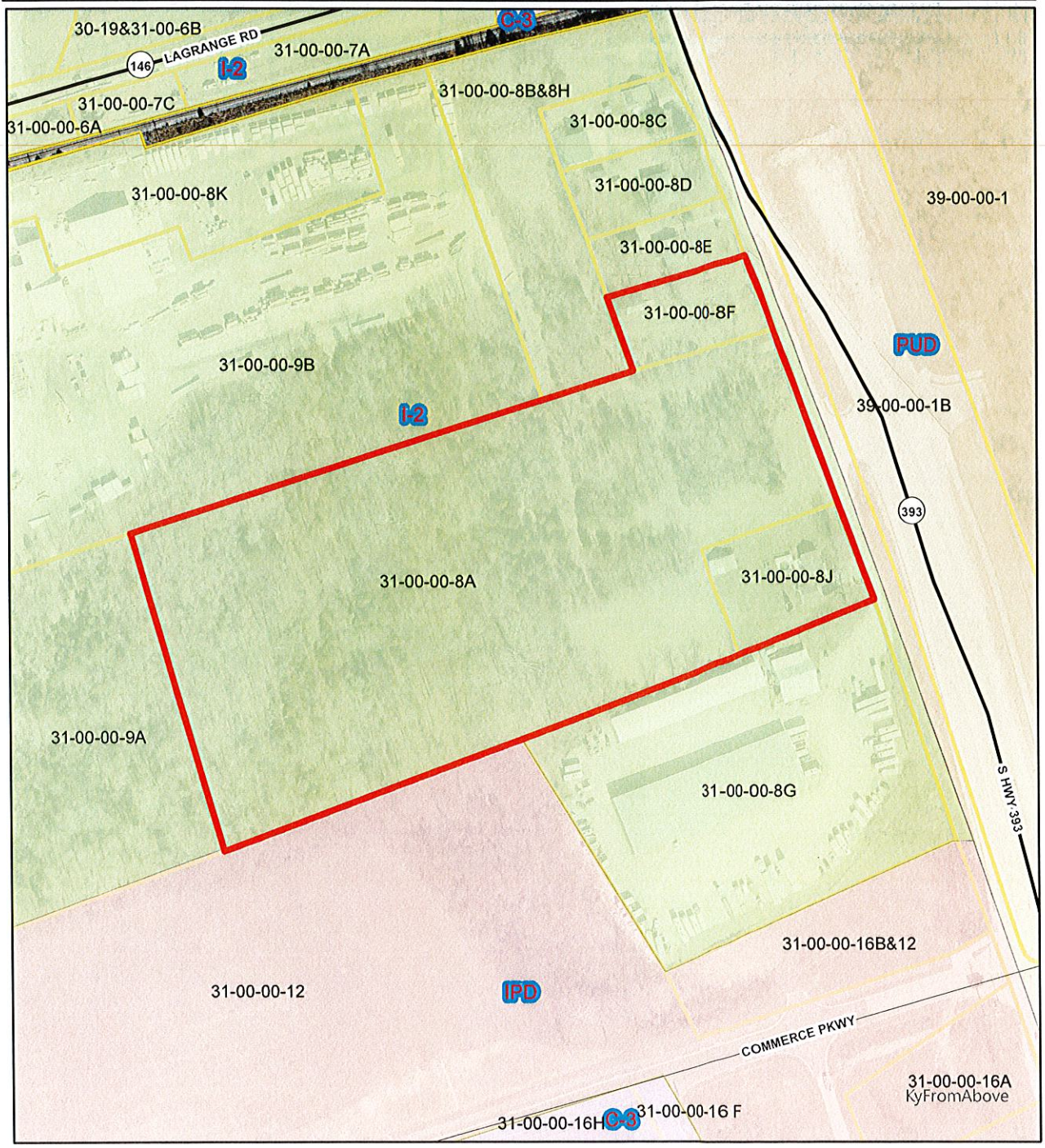
This map is not a legal document and should only be used for general reference and identification. Oldham County Geographic Information Consortium and Oldham County Fiscal Court make no guarantee as to the accuracy, validity or usefulness of data contained herein.

WESCOTT COMMERICAL DEVELOPMENT

Zoning Map Amendment/ Development Plan

I-2 to C-2

2706 S HWY 393
31-00-00-8J,31-00-00-8F, 31-00-00-8A



N
W E
S

0 120 240 480 Feet

This map is not a legal document and should only be used for general reference and identification. Oldham County Geographic Information Consortium and Oldham County Fiscal Court make no guarantee as to the accuracy, validity or usefulness of data contained herein.

Docusign Envelope ID: 70FAF05D-2986-8830-826F-2C67B449C5DD

Oldham County

AUG 19 26

Planning & Development

Oldham County Planning and Development Services

Application for Zoning Map Amendment
Development Plan

CC Fee 33.75

For Staff Use Only:

Date: _____ Docket No: P2-26-023 Staff: JH Fee: CC#4539

This application must be submitted in person at the Planning and Zoning Office.

General Information: *(A separate application must be submitted for each individual request.)*

Name of Applicant(s): WESCOTT DEVELOPMENT

Project Address: S HWY 393; 2706 S HWY 393; S HWY 393 (Tracts 1 and 2)

Project Name: BUCKNER INDUSTRIAL PARK

City: La Grange Is the project within the incorporated city limits? No

Total Site Acreage: 3.98 Subdivision Name: N/A

Current Land Use: Vacant and single family. Proposed Land Use: Commercial

Parcel ID: 31-00-00-8F 31-00-00-8J 31-00-00-8A Current Zoning: C-2 Proposed Zoning: C-2

Are there any past or present related Planning and Zoning cases on this property? If yes, please list the cases:

No

Signatures: ***(The undersigned agrees that the filing of this application constitutes an agreement by the owner(s) and other parties having an interest in the subject property. Their heirs, successors, and assigns, that, if the zoning map amendment(s) requested by this application is (are) enacted by the appropriate legislative body, building permits for improvement of the subject property shall be issued only in conformance with the zoning ordinance and binding and that such binding elements shall be strictly complied with and may be enforced in the same manner as the zoning district regulations.)***

Owner(s):

Name: Buckner Industrial Phase I LLC Signature:

Address: 13304 W Hwy 42 Prospect, KY 40059

Name: Wescott Development Holdings LLC Signature:

Address: 13304 W Hwy 42 Prospect, KY 40059

Name: MAXWELL REALTY LLC Signature: Signed by: B3ADA28725A5418...

Address: 8110 WORWICK AVE LOUISVILLE KY 40222

Applicant(s): *(if other than owner)*

Name: WESCOTT DEVELOPMENT Signature:

Address: 13304 W Hwy 42 Prospect, KY 40059

Phone: 502 802 8553 Email Address: WES@WESCOTTDEVELOPMENT.COM

Contact: *(if other than owner)*

Name: Clifford Ashburner Dinsmore & Shohl Signature:

Address: 101 S Fifth Street #2500, Louisville, KY 40202

Phone: 502-540-2300 Email Address: clifford.ashburner@dinsmore.com

Docusign Envelope ID: 70FAF05D-2986-8830-826F-2C67B449C5DD

Additional Requests:

A. Are there any variances required? _____

If yes, attach a list including each variance and from which section of the Zoning Ordinance the variance is requested. Each request for a variance must also include a justification statement in response to the following questions:

1. What are the specific conditions related to this request that are unique only to the applicant's land and do not exist on other land in the same general vicinity, or in the same zoning district?
2. If this variance were not granted, how would this deprive the applicant of reasonable use of the land in a manner equivalent to uses permitted to other landowners in the same zoning district?
3. Are the unique conditions and circumstances a result of actions of the applicant taken after the adoption of the zoning regulations from which relief is sought?
4. How will the variance preserve, and not harm, the public safety and welfare of the public and maintain the essential character of the neighborhood?

Variances are needed when a major subdivision conflicts with specific dimensional requirements of the Oldham County Zoning Ordinance.

B. Are there any waivers required? _____

If yes, attach a list including each waiver and from which section of the Subdivision Regulations the waiver is requested. The Commission may reduce or otherwise grant waivers from the requirements of the Oldham County Subdivision regulations whenever it encounters the situations described below.

A. Exceptional Hardship – Where the Commission finds that strict compliance with these regulations would create an undue hardship because of exceptional unique topographic or other natural or man-made physical conditions encountered on the particular land, the Commission may modify these regulations to the extent necessary to relieve the undue hardship.
B. Design Innovation and Large Scale Development – These regulations may be modified by the Commission in the case of plans for complete neighborhoods or other design innovations which, in the Commissions opinion, still achieve the basic objectives of these regulations.

Requests for waivers must be justified based on one or both of the above situations.

C. Is the Zoning Map Amendment part of an application for a Major Subdivision? _____

If yes, a separate Major Subdivision Preliminary Plan Application is required.

ZONING APPLICATION

Justification Statement

S HWY 393; 2706 S HWY 393

The subject property is currently zoned I-2 Heavy Industrial District. The proposed rezoning to C-2 Community Business District would allow for the development of commercial outlots and services, including uses such as quick-service restaurants with drive-through facilities, a drive-through car wash, and other commercial businesses permitted within the district.

The purpose of the C-2 Community Business District is to provide for retail shopping and personal service uses, shopping goods and household services for a population considerably larger than that served by local business districts. The subject property is located within an area characterized by a mix of industrial and commercial development. The proposed rezoning would facilitate commercial services that complement surrounding businesses by providing convenient dining and service opportunities for employees, residents, and visitors.

The proposed development is appropriate given the commercial growth occurring directly across S. Hwy 393 at Buckner Commons, a planned 30-acre mixed-use retail center. Buckner Commons includes restaurants, retail stores, banks, and other service businesses. As the corridor continues to develop, there will be increased demand for additional dining, convenience, and service-related uses. The subject property's location near existing and planned commercial development makes it a logical location for the proposed C-2 zoning and will complement ongoing investment in the area.

The proposed development is consistent with the goals and objectives of the Oldham County Comprehensive Plan by supporting economic development, enhancing employment opportunities, and promoting the efficient use of land and existing infrastructure. Although the subject property is currently vacant, it is situated in an area with established industrial and commercial development of greater intensity. The proposed commercial uses represent a less intensive land use than the existing I-2 Heavy Industrial zoning and will provide an appropriate transition between nearby land uses while expanding the range of services available within the area.

The site benefits from access to existing infrastructure and is located where public utilities and roadway facilities are available to support development. Overall, the proposed rezoning to the C-2 Community Business District is compatible with the surrounding development pattern and represents an appropriate use of the property. The development furthers the Comprehensive Plan's objectives for orderly growth, economic development, and efficient land use.

The proposed use meets several goals and objectives of the Comprehensive Plan, including:

Goal LU-1: Provide for planned and orderly growth to protect land from premature or unsuitable development. Objective LU-1-1: New development should be compatible with surrounding land uses, community, and local infrastructure.

The proposed development will meet applicable capacity standards and address any identified infrastructure needs to ensure that public facilities and services are not strained beyond their available capacity. The project provides an appropriate transition in land use intensity and scale in relation to the surrounding industrial and commercial development pattern. Overall, the proposed use is compatible with existing and anticipated land uses in the area.

Objective LU-1-4: Encourage development in areas with existing capacity, infrastructure, and services before moving into less developed areas of the county.

The proposed development promotes the efficient use of existing infrastructure and underutilized land in an area already experiencing significant commercial growth. Located near the approved Buckner Commons mixed-use retail development, the proposed development will benefit from the existing and planned services, utilities, and transportation facilities. The proposal is consistent with the Comprehensive Plan and represents an appropriate use within the Commercial designation shown on the Future Land Use Map.

Objective LU-3-2: Ensure adequate commercial and industrial land uses are available and ensure that these sites are identified so that the surrounding community impact is reduced.

The proposed development will provide additional commercial services to support nearby businesses, employees, and residents while contributing to economic growth and employment opportunities within Oldham County. The site's location within an established industrial and commercial area, including the nearby Buckner Commons development, makes it well suited for commercial uses. By locating these services in an area already served by existing infrastructure and commercial activity, the proposal minimizes impacts on surrounding properties and supports the continued development of the corridor.

Goal T-1: Facilitate a safe, efficient, and connected transportation network that supports growth, mobility, and economic development. Objective T-1-1: Encourage improvements to existing transportation corridors to enhance safety, reduce congestion, and accommodate planned development.

The Comprehensive Plan encourages coordinated access management and roadway improvements that support safe and efficient travel. The proposed development utilizes access from S. Hwy 393 and provides internal circulation between the commercial outlots, reducing unnecessary vehicle movements and limiting the number of access points along adjacent roadways. This coordinated site design promotes safe traffic operations while supporting existing and planned commercial development within the corridor.

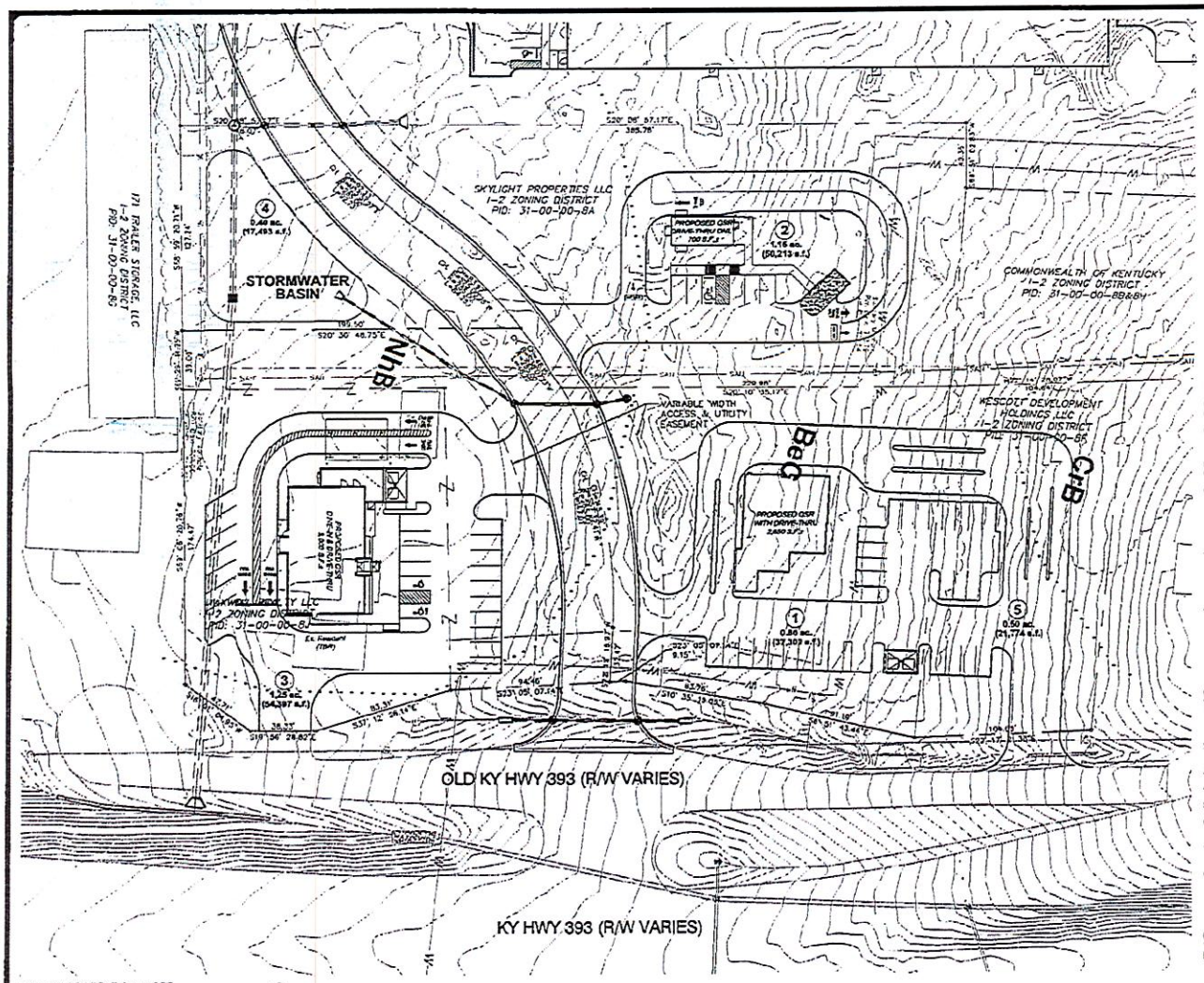
Objective T-1-3: Establish minimum right-of-way, design, and construction standards for collectors and local roads to accommodate safe emergency vehicle access, respond to environmental constraints and ensure compatibility with the character of proposed development.

The Comprehensive Plan encourages internal connections and alternative access between adjacent land uses, to improve circulation, accessibility, and overall connectivity. The proposed development supports this objective through its access from S. Hwy 393 and internal circulation

system connecting the commercial outlots. The site layout promotes safe and efficient vehicle movement, while supporting the orderly development of the surrounding commercial area.

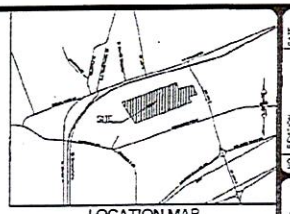
Based on the foregoing, the proposed rezoning to C-2 Community Business District is appropriate and justified. The proposed development represents an appropriate land use and is compatible with the Commercial designation contemplated in the Future Land Use Map. The proposal supports the goals and objectives of the Oldham County Comprehensive Plan by encouraging orderly growth, supporting economic development, promoting efficient use of existing infrastructure, and enhancing transportation connectivity.

The subject property is located within a developing commercial corridor, with nearby industrial and commercial uses and the approved Buckner Commons mixed-use retail center directly across S. Hwy 393. The proposed rezoning will provide commercial services that complement these surrounding uses and meet the needs of area businesses, employees, residents, and visitors. Through its site design, internal circulation, and integration with the surrounding development pattern, the proposed development is compatible with the area and will positively contribute to the continued economic growth of Oldham County.



MINIMUM REQUIREMENTS

FRONT YARD SETBACK:	NONE
STREET SIDE YARD SETBACK:	NONE
SIDE YARD SETBACK:	NONE
REAR YARD SETBACK:	NONE



LOCATION MAP
NOT TO SCALE

LEGEND

- Section Corner Found (Type as noted)
- 5/8" Rebar
- Rebar Found
- Mag nail Set
- Mag/PK Nail found
- Railroad Spike found
- Railroad Spike Set
- Iron Pipe Found
- Wood Corner Post Found
- (R) Record Deed Dimension
- R/W Right of Way
- Fenceline
- Light Pole
- Power Pole
- Sign Survey
- Tree
- CrB Soil Classification
- Tree drawn (Vendors Types A Sizes)

PROJECT SUMMARY

EXISTING ZONING:	I-2
PROPOSED ZONING:	C-2
PARCEL I.D.:	31-00-00-8A 31-00-00-8F 31-00-00-8J
EXISTING USE:	VACANT
PROPOSED USE:	VARIOUS C-2 USES
GROSS AREA:	181,202 SF (4.16 Ac)
LOT 1:	37,382 SF (0.85 Ac)
LOT 2:	50,213 SF (1.15 Ac)
LOT 3:	54,397 SF (1.25 Ac)
LOT 4:	17,493 SF (0.40 Ac)
LOT 5:	21,774 SF (0.50 Ac)

TOTAL FLOOR AREA/COVERAGE:	
LOT 1/5:	2,850 / 58,076 = 4.8%
LOT 2:	700 / 50,213 = 1.4%
LOT 3:	1,450 / 46,111 = 3.1%
LOT 4:	N/A

TOTAL IMPERVIOUS AREA/COVERAGE:	
LOT 1/5:	29,791 / 58,076 = 58.4%
LOT 2:	13,886 / 50,213 = 27.5%
LOT 3:	18,379 / 46,111 = 39.9%
LOT 4:	N/A

PRELIM. DRAINAGE CALCS

OVERALL SITE AREA: 181,202 SF (4.16 AC)

COMPOSITE "C" FACTORS FOR SOIL GROUP "C"

PRE-DEV	0.23
POST-DEV	0.75

PRELIMINARY DETENTION VOLUME ESTIMATE
$V=(C_{POST}-C_{PRE})(7.5)(AREA)/12$

$V=(0.49)(2.8)(4.16)/12 = 0.48$ AC-FT
$= 20,718$ CF

PARKING SUMMARY

LOT 1/5: QSR (WITH DRIVE-THRU) BLDG=2,850 SF
MIN: 23 MAX: 38 PROVIDED: 29

LOT 2: QSR (DRIVE-THRU ONLY) BLDG=700 SF
MIN: 4 MAX: 6 PROVIDED: 6

LOT 3: QSR (WITH DRIVE-THRU) BLDG=3,000 SF
MIN: 24 MAX: 40 PROVIDED: 24

GENERAL NOTES

1. BEFORE LAND-DISTURBING ACTIVITIES CAN BEGIN, DEVELOPER SHALL OBTAIN A KYPDES PERMIT FROM THE KENTUCKY DIVISION OF WATER (KYDOW) AND AN OLDHAM COUNTY STORMWATER QUALITY MANAGEMENT AND EROSION CONTROL (OWQMEC) PERMIT.
2. DEVELOPER SHALL OBTAIN AN ENCROACHMENT PERMIT PRIOR TO PERFORMING ANY WORK WITHIN THE RIGHT OF WAY OF HWY 393.
3. TOPOGRAPHIC INFORMATION PREPARED THROUGH AERIAL PROCESSING BY LJG ENGINEERING.
4. PROPERTY BOUNDARY LINES PREPARED BY SCHROLL LAND SURVEYING.
5. THE PROPOSED SITE CONFIGURATION IS CONCEPTUAL.
6. THIS SITE IS NOT LOCATED IN ZONE X (AREA OF MINIMAL FLOOD HAZARD) OF FEMA FIRM NO 21185C0120D, DATED 03/23/2021.
7. THERE ARE NO AREAS OF STEEP SLOPE (OVER 30%) WITHIN THE PROJECT BOUNDARY BASED UPON CURRENT TOPOGRAPHIC DATA.
8. A LANDSCAPE AND LIGHTING PLAN SHALL BE SUBMITTED FOR APPROVAL PRIOR TO ISSUING BUILDING PERMITS.

OWNER

PARCEL 31-00-00-8A
Skylight Properties LLC
1500 W Hwy 42
Goshen, KY 40026

PARCEL 31-00-00-8C
Wescott Development Holdings LLC
13304 Hwy 42
Prospect, KY 40059

PARCEL 31-00-00-8J
Maxwell Realty LLC
8110 Warwick Ave.
Louisville, KY 40222

DEVELOPER

Wescott Development LLC
13304 Hwy 42
Prospect, KY 40059

UTILITY PROTECTION NOTE

ALL UTILITIES ON THESE PLANS ARE APPROXIMATE. INDIVIDUAL SERVICE LINES ARE NOT SHOWN. THE CONTRACTOR OR SUB-CONTRACTOR SHALL NOTIFY THE UTILITY PROTECTION CENTER "KENTUCKY 811" (TOLL-FREE PHONE NO. 1-800-752-6007, 48 HOURS IN ADVANCE OF ANY CONSTRUCTION ON THIS PROJECT. THIS MEASURE WAS ESTABLISHED TO PROVIDE ACCURATE LOCATION OF EXISTING BELOW GROUND UTILITIES (I.E., CABLES, ELECTRICAL WIRES, TELEPHONE LINES, GAS, AND WATERLINES). THE CONTRACTOR SHALL BE RESPONSIBLE FOR BECOMING FAMILIAR WITH ALL UTILITY REQUIREMENTS SET FORTH ON THE PLANS AND IN THE TECHNICAL SPECIFICATIONS AND SPECIAL PROVISIONS.

Kentucky 811

UTILITY NOTE

LOCATIONS OF UNDERGROUND UTILITIES ARE APPROXIMATE AND ARE BASED UPON A TOPOGRAPHIC SURVEY PREPARED BY CARDINAL SURVEYING DATED 06/06/2024. NEITHER THE ENGINEER NOR HIS REPRESENTATIVES HAVE VERIFIED OR OBSERVED THE ACTUAL INSTALLATION OF THE UTILITIES SHOWN. EXACT LOCATIONS OF EXISTING INDIVIDUAL SERVICE LINES ARE NOT KNOWN.

CATEGORY 2 DEVELOPMENT PLAN

GRAPHIC SCALE IN FEET
30 15 0 30 60 90
1 INCH = 30 FEET

NO	REVISION	DATE
1	PER PLANNING COMMENTS	7/7/2025

STATE OF KENTUCKY
PHILLIP R. CAMPBELL
16018
LICENSED PROFESSIONAL ENGINEER

PAPE-DAWSON
ENGINEERS, PLANNERS, SURVEYORS

BUCKNER INDUSTRIAL PARK
3926 WEST HWY 146, BUCKNER, KY 40010
ZONING MAP AMENDMENT (I-2 to C-2)
DEVELOPMENT PLAN

PLAT NO.	N/A
JOB NO.	23209068-001
DATE	JULY 22, 2024
DESIGNED	P. CAMPBELL
CHECKED	PRC DRAWN PRC
SHEET	DP-1

Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-023 – An application has been filed by Wescott Development for a Zoning Map Amendment and Development Plan on property located at 2706 S. Hwy. 393., La Grange. The property is 3.98-acres and currently zoned I-2, Heavy Industrial District with a proposed zoning of C-2, Community Business District.

1. **Introduction of the new information by staff and questions by the Commission:**

   Senior Planner John Hine presented the following:

   - Summary of the application.
   - Case History (see Exhibit A, Staff Report dated September 22, 2026).
   - Site history.
   - Aerial Photos of the site.
   - Photos of property.

   Jim Silliman, Oldham County Engineer

   - Because land-disturbing area is greater than 1 acre, the applicant will need to obtain a KYR10 Permit from the Kentucky Division of Water and Stormwater Quality Management and Erosion Control Permit from Oldham County.
   - The detention basins shall be encompassed by a drainage easement, which shall be recorded with the Oldham County Clerk with a long-term stormwater maintenance agreement.
   - I would like to suggest that we make one of the binding elements to be that approval is contingent on whatever requirements KYTC imposes following their review.

   Commissioner Allison asked, will there be restaurants?

   Senior Planner Hine replied, you will need to ask the applicant.

2. **Presentation by the applicant or representative and others in support of the application:**

   Cliff Ashburner, Dinsmore & Shohl, 101 S. 5th Street, Louisville, was present and representing the applicant.

   - The applicant wants to change the zoning from I-2 to C-2.
   - The plan that you see today is a concept plan and it could be accommodated in I-2 however, we do have a high confidence that today's plan will end up on the property but if that does not occur then allowing for community commercial uses on the property would improve its marketability and would comply more fully with the recommendations of the future land use map.
   - Both the entrances east and west from Hwy 393 have already been installed.
   - The frontage road does serve more than just this property.

Diane Zimmerman, Traffic Engineering, LLC, 12803 High Meadows Pike, Prospect, was present and sworn in prior to presenting.

- The traffic from the warehouses and traffic from Buckner Commons has been included in the Traffic Impact Study.
- There will be a left turn lane north and south bound.
- A southbound right turn lane is not required because it does not meet the volume.
- It is also my professional opinion that a traffic signal would not be warranted at this intersection because it does not meet the 8-hour demand that is required.

Wes Johnson, Wescott Development, 13304 W. Hwy 42, Prospect, was present and sworn in prior to presenting.

- There is state right away in front of this property and there is a long flag lot that's virtually landlocked that the state owns. They purchased it in preparation for the Hwy 393 project.
- We have asked the state to sell the property to us, however they will not release any of it until after the Hwy 393 project is complete.

3. **Testimony and questions by those opposing the application: None**
4. **Questioning of the applicant and those opposing the application by the Commission:**

Commissioner Kraus asked, did the traffic study include three restaurants?

Mrs. Zimmerman replied, yes.

Commissioner Hampton asked, will this development start before the completion of the Hwy 393 underpass?

Mr. Johnson replied, it is a possibility. We do not have any executed LOI's today. We do have people looking at the property.

Commissioner Douglas asked, do you not anticipate more than 36 trip traffic leaving Commerce Ridge in the mornings?

Mrs. Zimmerman replied, no. But remember these totals are based on square footage of the buildings.

Commissioner Miller asked, the streets are proposed to be private streets, but will they be built to county standards?

County Engineer Silliman replied, we do have a private road standard, and it will be built to that standard.

Commissioner Miller asked, has there been any discussion on who will maintain the streets since they are privately owned and signalization if one is required?

Mr. Johnson replied, the traffic light would happen with the approval of the development plan, and all the tenants will contribute to a road maintenance fund.

Attorney Ashburner replied, the private road maintenance responsibility will be the owners of the lots that use the road. And if KYTC warrants for a signal light to be placed there then Wescott would contribute to that but there are more people that would be using that signal and would need to contribute as well.

Commissioner Miller asked, is there an entity that could be contacted and be responsible for responding to requests or can I assume there would be through the CCRs?

Attorney Ashburner replied, that would be correct.

Commissioner Douglas asked, would they be required under a deed restriction to come up with a private road maintenance agreement?

County Engineer Silliman replied, I believe that is a planning and zoning question, so I will defer it to Director Fischer.

Director Fischer replied, I don't believe we would want to make that stipulation. We haven't been with others in the past.

Attorney Ashburner replied, there will be a road maintenance agreement because the businesses will want to make sure their road is clear and in good shape all the time.

Commissioner Allison asked, does the traffic report take in the assessment for a carwash?

Mrs. Zimmerman replied, a carwash generates less traffic than a fast-food restaurant.

Commissioner Kraus asked, is the reason for wanting the change in zoning is because of marketability?

Mr. Johnson replied, yes, 100% because of marketability.

5. **Rebuttal evidence and Cross Examination by the Applicant: None**
6. **Rebuttal evidence and Cross Examination by the Opposition: None**
7. **Final statement of the Opposition: None**
8. **Final statement of the Applicant:**

Attorney Ashburner's final statement.

- We recognize that this is a little different than what is usually presented to this board today.
- We understand the future of Hwy 393 will bring a lot of development from Hwy 146 and the interstate.
- We believe the traffic study and the construction that is occurring on Hwy 393 match up quite well and the Hwy 393 improvements have already anticipated the traffic at the level that is already being shown at this development.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS
Docket PZ-26-023
Zoning Map Amendment
2706 S. Hwy 393
LaGrange

Motion was made by Commissioner Elder and seconded by Commissioner Davis to recommend approval to Oldham County Fiscal Court for a zoning map amendment from I-2 to C-2 located at 2706 S. Hwy 393, LaGrange because it complies with objectives LU-1 and LU-2 of the comprehensive plan and it allows for appropriate optional uses and based on evidence and testimony heard today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the September 22, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Douglas, Elder, Graham, Hampton, Hayes,
Kraus, Miller, and Servis.
NO: None
ABSTAIN: None
ABSENT: Commissioner Klingenfus, Marsh and Thompson.
Motion approved on a vote of 11-0

FINDINGS AND DECISIONS
Docket PZ-26-023
Preliminary Development Plan
2706 S. Hwy 393
LaGrange

Motion was made by Commissioner Elder and seconded by Commissioner Davis to approve the preliminary development plan located at 2706 S. Hwy 393, LaGrange because it complies with objectives LU-1 and LU-2 of the comprehensive plan, the zoning ordinance and the subdivision regulations and it is in line with the future use map and based on evidence and testimony heard today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the September 22, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. The applicant must obtain all necessary permits and inspections from the relevant agencies.
5. A Landscape and Lighting Plan will be required at time of construction plan approval.
6. A consolidation plat will be required before construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Douglas, Elder, Graham, Hampton, Hayes, Kraus, Miller, and Servis.

NO: None

ABSTAIN: None

ABSENT: Commissioner Klingenfus, Marsh and Thompson.

Motion approved on a vote of 11-0

Technical Review Committee Meeting
Wednesday, August 19, 2026
Meeting at 1:00 p.m.

PRESENT:

TRC Committee Members:
Ryan Fischer – Oldham County Planning & Development
Cayley Crum – Oldham County Planning & Development
Jim Silliman – Oldham County Engineer
Matt Tolar - Oldham County GIS
Brian Claybern – LaGrange Fire & Rescue Department
Russ Rose – Oldham County Water District

APPLICANT NAME AND ADDRESS OF PROPOSAL

TRC-26-017 Wescott Development, S HWY 393; 2706 S HWY 393

Zoning Map Amendment and Development Plan
Current Zoning – I-2, Light Industrial District
Proposed Zoning – C-2, Community Business District
Applicant – Wescott Development
Engineer – Pape-Dawson

Cliff Ashburner, Dinsmore & Shohl, 101 S. Fifth Street, Louisville

- Applicants want to down zone the property from I-2 to C-2 for outlots in front of already approved industrial buildings.

Phil Gambrell, Pape-Dawson Engineers, 2309 Watterson Trail, Louisville

- We are here to take the comments.

AGENCY COMMENTS:

John Hine, Planner, Oldham County Planning and Development Services

1. Include name, pavement width, and right of way of proposed streets, driveways, and parking areas.
2. Show bearings and dimensions for all proposed boundary lines.
3. Plans should show building setback distance from right of way.
4. Locations of proposed water mains, sanitary sewers, gas lines, fire hydrants, and electric poles or underground wires should be included on the plans.
5. Include the height of the proposed buildings.
6. Add symbols to the legend for the proposed drainage facilities.
7. Show notation of stormwater flow.
8. Section 6.3 (f) of the Oldham County Subdivision Regulations requires non-residential commercial or office subdivisions to provide sidewalks on both sides of the street. Please include sidewalks in the plans or a waiver of the Subdivision Regulations must be obtained.
9. Your next step will be an application for a Zoning Map Amendment and Development Plan to the Oldham County Planning Commission.

John Hine read KYTC, Jason Richardson's comments:

- Additional right of way may be required across the frontage of this tract to meet the current local Land Development Code. The requirements are determined by local Planning and Public Works departments.
- Calculations will be required for any runoff deemed necessary to be taken to the state right of way. Proposals to alter or significantly increase a drainage area or runoff factors or to change in any way the performance of an existing drainage structure shall be accompanied by a complete drainage survey and hydrologic analysis (upstream and downstream) based on 25-year and 100-year storms. This analysis shall include a comparison of existing and proposed conditions. Requests to alter drainage on a right of way shall result in conditions that are equal to or better than the existing facilities.
- There shall be no commercial signs on the right of way.
- There shall be no landscaping in the right of way without an encroachment permit. Tree species planted in the right of way shall conform with District 5 list of approved trees.
- Site lighting shall not shine in the eyes of drivers. If it does, it shall be re-aimed, shielded or turned off.
- All drainage structures within state right of way shall be state design.
- There shall be no parking nor any portion of any parking lot on state right of way.
- All new and existing sidewalks shall be either brought up to or built to ADA current standards.
- Design of access to state highways shall comply with KYTC standard and/or typical drawing. Entrance throat width will be limited to 24ft minimum, 36ft maximum, with 35ft minimum corner radii.
- A Traffic Impact Study will be required.
- KYTC is okay with the concept on the Landscaping plan with the exception of the comments in this review. This is just a preliminary okay. KYTC will review again if or when construction plans are submitted, the reserve the right to change or qualify the approval when construction plans are submitted for review.

John Hine read MSD, Kim Loechle's comments.

- Applicant needs to submit a DFC (Downstream Facilities Capacity) request to ensure downstream sanitary sewer capacity.
- DFC form & instructions can be found on MSD website: https://louisvillemsd.org/programs/lateral-extension-sanitary-sewers, fees may apply.

John Hine read Oldham County Police Department, Greg Smith's comments.

- No major issues with this development.
- Need to anticipate increased traffic on Highway 393.
- Need to include driveway design and adequate security lighting.

John Hine read USPS, Stephanie VanZante's comments.

- The address should be LaGrange, 40031, not Buckner.
- They will need to install an NDCBU for mail delivery.

Matt Tolar, Oldham County GIS

- The Post Office sets the zip codes, so reach out to them to ask if the warehouses will be LaGrange, 40031 as well as these outlots.

Jim Silliman, Oldham County Engineer

1. Permits:
   a. Because land-disturbing area will be greater than one (1) acre, the applicant shall obtain a KYR10 Permit from the Kentucky Division of Water (KY DOW) and a Stormwater Quality Management and Erosion Control (SWQMEC) Permit from Oldham County.
   b. The project does not impact a jurisdictional (blueline) stream, as indicated on the USGS The National Map online viewer. As such, permitting (a 404 permit, 401 Water Quality Certification, and Stream Construction Permit) from the U.S. Army Corps of Engineers (US ACE) and KY Division of Water (KY DOW) is not required.
   c. Based on the current plan, this project encroaches onto Old KY Hwy 393. Any work within the state right-of-way will require an Encroachment Permit issued by KTYC. The applicant shall provide that permit to our office as part of the construction plan approval process.

2. Road/Pavement Design:
   a. We recommend the applicant design the planned entrances encroaching onto Old KY Hwy 393 to comply with the KYTC D5 Standard Commercial Entrance detail.
   b. Pavement cross section was not provided with the plan. This shall be provided on the plan submitted for the Planning Commission hearing.
   c. Pursuant to Section 6.3.C of the Oldham County Subdivision Regulations, the paved traffic areas shall be curbed.
   d. Considering the planned use, we assume the internal streets, driveways, and common parking areas will be private (e.g., not be dedicated to public use) and shall be maintained by the owners.
   e. The applicant shall ensure the internal pavement geometry can accommodate potential vehicles using the pavement (e.g., emergency vehicles, garbage trucks, delivery trucks, etc.).
   f. The applicant shall include dimensions such as the entrance width, entrance radii, lane width, lane designation, and parking space dimensions, on future plan submittals.
   g. Pursuant to Section 6.3.F of the Oldham County Subdivision Regulations, which requires sidewalks on both sides of all streets within a commercial or office subdivision, the applicant will be required to obtain a waiver of this regulation if sidewalks are not included.

3. Stormwater Runoff and Water Quality:
   a. Since the land-disturbance area is equal-to or greater-than one (1) acre, stormwater detention or retention and water quality treatment will be required per Oldham County Ordinance No. 16-830-348. The applicant will be required to provide these calculations with their SWQMEC permit application.
   b. Water quality treatment will be required per Sections 5.3 and 6.0 of the Oldham County Ordinance Post-Construction Stormwater Control Ordinance
   c. New detention/retention basins shall have the following attributes:
      1) No trees will be permitted within the 100-year WSE of the basin.
      2) The outlet headwall of the detention basin should be set-back 15-ft from the property line.
      3) The emergency spillway shall not be earthen. It shall incorporate an appropriate channel lining.
   d. The detention/retention basins shall be encompassed by a drainage easement, which shall be recorded with the Oldham County clerk with an associated Long-Term Stormwater Maintenance Agreement. Please note, the release of erosion control surety may be delayed until this easement has been recorded with the county clerk.
   e. Since the detention basin appears to service three commercial lots, the aforementioned drainage easement and Long-Term Stormwater Maintenance Agreement shall also be accompanied by a shared maintenance agreement for the respective lot owners.
   f. None of the individual lots show the planned storm sewer. The plan submitted for the Planning Commission hearing should depict the surface flow direction and planned storm sewer.
   g. The southern boundary includes a storm sewer that is not depicted on the Buckner Industrial Park plans currently under construction plan review. It also appears that storm line may receive stormwater from western warehouses, which is not currently the configuration being considered. Please explain.

4. Traffic Impact: Based on the areas of the proposed buildings for the cumulative projects at the Buckner Industrial Park, the Institute of Transportation Engineers (ITE) web-based trip generation tool calculates the following peak hour trips:

Code Description	AM Peak Hour Trips	PM Peak Hour Trips
200,000sqft Warehouse (Code 150 - Warehousing) - previously approved	39	40
200,000sqft Warehouse (Code 150 - Warehousing) – previously approved	39	40
1,450sqft Drive-Thru Car Wash (Code 948 - Automated Car Wash)	22	35
2,850 QSR with Drive-Thru (Code 934 - Fast Food Restaurant with Drive-Thru Window)	95	90

700sqft QSR Drive-Thru Only (Code 935 - Fast Food Restaurant No Indoor Seating)	43	60
Total Peak Hour Trips	238	265

Review of the KYTC interactive traffic map online indicates an ADT of 7,042 in 2019 (Station 298) on KY Hwy 393 near the project location. In accordance with the Oldham County Subdivision Regulations, a Traffic Impact Study (TIS) is required. Based on correspondence with KYTC, they concur and will also be requiring a TIS.

Brian Claybern, LaGrange Fire & Rescue Department

- Need to show roadway access widths to each outlot.
- Need to show hydrant locations on construction plans.

Russ Rose, Oldham County Water District

- Relocation of the existing water on the property might be needed, because it does not follow current roadway.
- Need to align water main along road for hydrant spacing.

Public Comments: None

****

Public Meeting Adjourned at 1:35 pm.

DINSMORE

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Louisville, KY 40202
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July 22, 2026

RE: **S HWY 393 and 2706 S HWY 393, Oldham County, KY**

Dear Neighbor:

This letter is being provided in accordance with Section 380-010(D) of the Oldham County Comprehensive Zoning Ordinance and includes a summary of the neighborhood meeting held on July 21, 2026. No attendees were present at the meeting; therefore, no sign-in sheet is included.

Although neighboring property owners were notified of the meeting, no adjoining property owners or community members attended.

If you have any additional questions or concerns regarding the development plan, please contact me at the above email address.

Very truly yours,

Clifford H. Ashburner

Enclosures: Neighborhood Meeting Summary

Neighborhood Meeting Notes

S HWY 393 and 2706 S HWY 393, Oldham County, KY

The meeting was held on July 21, 2026, at the John W. Black Community Center. The applicant, Wescott Development, was represented by Wes Johnson; Cliff Ashburner of Dinsmore & Shohl LLP; and Phil Gambrell of Pape-Dawson.

No adjoining property owners or other community members attended the meeting.

The meeting concluded after approximately 30 minutes.

DINSMORE

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July 6, 2026

RE: **S HWY 393 and 2706 S HWY 393, Oldham County, KY**

Dear Neighbor:

Our client, Wescott Development Holdings, LLC, intends to file an application to rezone the properties located at S. Highway 393 and 2706 S. Highway 393 (Parcel IDs: 31-00-00-8A, 31-00-00-8F, and 31-00-00-8J) (collectively, the "Subject Property") from the Heavy Industrial District (I-2) to the Community Business District (C-2). The proposed rezoning would allow the development of commercial uses on the Subject Property in accordance with the attached development plan.

We are inviting nearby owners, residents, and other neighborhood stakeholders to a meeting to discuss the proposal as indicated below.

MEETING:

Location:	**John W. Black Community Center, Room B** **1551 KY-393** **La Grange, Kentucky 40031**
Date:	**July 21, 2026**
Time:	**6:00 p.m. – 7:30 p.m.**

1. **Summary of Project:**
   The proposed development will allow the applicant to construct and operate commercial uses on the Subject Property.

2. **Proposed Development Plan**
   Attached please find a copy of the proposed development plan for your review.

If you have any questions you'd like us prepared to answer, please contact me at the above email address.

Very truly yours,

Clifford H. Ashburner

BUCKNER INDUSTRIAL PARK
3926 WEST HWY 146, BUCKNER, KY 40010
OUTLOT CONCEPTUAL LAYOUT
PAPE-DAWSON
CSP-1
SCALE: 1" = 30'
2
1.36 ac.
(59,077 s.f.)
3
1.15 ac.
(50,213 s.f.)
4
0.59 ac.
(25,802 s.f.)
1
1.01 ac.
(44,000 s.f.)

LEGAL NOTICE

PUBLIC NOTICE

OLDHAM COUNTY FISCAL COURT
ORDINANCE KOC 26-930-48

An ordinance creating a new section of the Oldham County Comprehensive Zoning Ordinance Subdivision Regulations.

The second reading/public hearing and adoption of the above proposed ordinance is scheduled to be held in the Fiscal Court Room located on the second floor of the Fiscal Court Building, 100 West Jefferson Street, La Grange, Kentucky on Tuesday, December 1, 2026 at 2:00 pm ET/ 1:00 pm CT.

KOC-26-930-48 is a proposed ordinance for an amendment / addition to the Oldham County Comprehensive Zoning Ordinance Subdivision Regulations to create Section 7.1 (G) Gravel Road Standards.

All interested parties are hereby notified that a copy of the proposed ordinance is available in its entirety for public inspection in the County Judge-Executive's office during regular business hours and online at https://www.oldhamcountyky.gov/public-notices.

David Voegele
Oldham County Judge-Executive